Existing Duties

Existing Consideration | When is an additional promise binding?

A painter has agreed to paint your room for £200. Halfway through, you promise another £50 for finishing exactly the same work. What supports your new promise? The painter's original promise already supported the £200 bargain. The question now concerns the additional £50.

This guide explains existing duties in the law of England and Wales. It is written for English students with no legal background. The lesson title "Existing Consideration" concerns what lawyers commonly call **performance of an existing duty**.

1 Start with the original obligation

Consideration is the legally recognised return for a promise. An **existing duty** is an obligation a person already owes before the new promise is made. A **variation** changes an existing contract, such as its price or scope of work.

Do not ask only whether the person spends time, effort or money. Ask what they were already required to do, and what supports the new promise. Something difficult can still fall within an existing obligation.

2 Identify the source and recipient of the duty

TYPE OF DUTY	STARTING POINT
Duty imposed by law	Merely doing what the law already requires generally does not support a separate promise of remuneration.
Contractual duty owed to the payer	The traditional rule rejects the same performance as consideration for extra pay; qualifications matter.
Contractual duty owed to someone else	A duty owed to a third party can support a new promise. Do not apply the same-party rule automatically.

3 Existing does not mean merely ongoing

A student regularly waters a neighbour's plants as a favour, without any obligation to continue. The neighbour then offers £10 for watering them next week. The fact that the student has done this before does not itself prevent the requested future service from supplying consideration.

This is also different from **past consideration**: an act already completed before the promise it is said to support. Here the focus is an existing obligation, often concerning work still to be performed.

Collins: Compulsory Court Attendance

Collins v Godefroy (1831) 1 B & Ad 950; 109 ER 1040
Court of King’s Bench

4 The facts and the claim

Godefroy brought a civil claim against an attorney. Collins was required by a **subpoena** to attend as a witness. A subpoena is a compulsory court process requiring attendance, not an optional invitation.

Collins attended court for six days but was never called to give evidence. He sought six guineas as compensation for his lost time. He relied on an alleged promise of payment. A guinea was a historical monetary unit worth £1 and one shilling.

5 The outcome and the reason

Outcome: Collins failed in his claim for remuneration; Godefroy won. Attendance under the subpoena was already a legal duty. Even assuming an express promise to pay for the lost time, performance of that duty supplied no consideration for it.

The central point was the existing duty to attend, rather than simply the fact that Collins never spoke in court. Godefroy was the defendant in the payment claim, but had been the claimant in the earlier civil proceedings.

6 Keep the two proceedings separate

PROCEEDING	WHO DID WHAT?
Earlier civil proceedings	Godefroy sued the attorney; Collins attended as a witness.
Payment claim	Collins sought remuneration from Godefroy for his attendance.
Relevant duty	Collins was already legally required to attend under the subpoena.

7 What the case does not settle

The decision does not mean witnesses can never receive expenses or payments under applicable procedural arrangements. A claim for contractual remuneration must be distinguished from any separate entitlement to witness expenses.

Nor does removing the subpoena automatically create an enforceable contract. Any different arrangement would still require examination of agreement, consideration, legality and the relevant court rules.

For this lesson, remember the narrower question: can performance of an already binding legal duty supply the return for this particular additional payment promise?

Stilk: The Claim for Extra Wages Fails

Stilk v Myrick (1809) 2 Camp 317; 170 ER 1168
Court of King’s Bench | Campbell’s report

8 The voyage and the additional promise

Stilk joined a crew of eleven for a voyage from London to the Baltic and back, at £5 a month. Two sailors deserted. After attempts to replace them failed, the captain promised to divide their wages among the remaining crew if no replacements could be obtained.

Stilk and eight other members of the original crew brought the ship back to London. Stilk sought his share of the additional wages.

9 The outcome and the scope of the contract

Outcome: Stilk could recover only his original wage rate, not the promised extra wages. Myrick succeeded in resisting the additional payment claim. The remaining sailors were already bound to exert themselves through the voyage’s emergencies; these desertions fell within that undertaking.

The case has two historical reports. This guide follows Campbell’s consideration-based account; Espinasse’s report emphasises public policy. It is unsafe to add an unqualified claim that the crew refused to work or unlawfully forced the promise.

10 More effort is not always a new obligation

Compare the scope of the original contract with what is now requested. The number of people who leave is relevant to the circumstances, but it is not a numerical test that automatically creates consideration.

SIMPLIFIED EXAMPLE	QUESTION TO ASK
Painting the same room for extra pay	Is there a fresh undertaking, or a relevant modern qualification?
Adding a second room for extra pay	Is this genuinely additional work outside the first contract?
Work becomes more tiring	Does the original undertaking already cover that difficulty?

In the second-room example, the new work can supply fresh consideration for the additional payment. Assume it was not already included and the revised bargain was freely agreed.

11 The original obligation remains important

Failure of an extra-pay claim does not mean there was no original contract or no entitlement to the original price. Analyse the original bargain and the later variation separately.

For a modern same-party variation, also consider the practical-benefit qualification on the next page. *Stilk* should not be taught as an absolute rule covering every promise to pay more.

Modern Qualification and Practice

12 Practical benefit: Williams v Roffey Bros

In *Williams v Roffey Bros & Nicholls (Contractors) Ltd* [1991] 1 QB 1, a carpenter had agreed to perform work but faced financial difficulties. The contractor promised extra payment to secure completion and avoid commercial problems, including delay liability and finding another subcontractor.

Outcome: Williams succeeded; the contractor's appeal was dismissed. Practical advantages could support the additional payment promise even though Williams undertook no additional carpentry work.

The qualification concerns a promise to pay more for existing contractual performance where a practical benefit is obtained and there is no economic duress or fraud. It is not a rule that every extra payment is binding, or a general solution for promises to accept less in settlement of a debt.

Economic duress involves illegitimate economic pressure inducing an agreement. A variation may be challenged on this ground. Commercial pressure and economic duress are not automatically the same.

13 Essential vocabulary

TERM	PLAIN ENGLISH MEANING
Existing duty	An obligation already owed before the new promise.
Variation	An agreed change to a contract.
Subpoena	Compulsory court process requiring attendance.
Practical benefit	A real commercial advantage relevant to the new bargain.

14 Check your understanding

1. Did Collins win his remuneration claim?
2. Did Stilk recover the promised extra wages?
3. Is work someone habitually does always an existing duty?
4. Can a same-party promise to pay more ever be supported by consideration?

Answers: 1. No; he was already obliged to attend. 2. No; only the original wage rate was recoverable. 3. No; identify an actual legal obligation. 4. Yes: genuinely additional work, or an applicable practical benefit without duress or fraud, may support it.

Authorities: Collins, original report extract; Stilk, Campbell report extracts; Williams, judgment extracts; Pao On v Lau Yiu Long [1980] AC 614 (third-party duties).

Based on the supplied *Existing Consideration - Contract Law* lesson, with necessary qualifications. Examples are simplified and concern English contract law.